LOAN AGREEMENT

Lockwood Eastlake Mixed-Use Center | Albuquerque, NM

Borrower	Lockwood Eastlake Mixed-Use Center Owner LLC
Lender	Summit Trail Credit Union
Collateral	Lockwood Eastlake Mixed-Use Center
Loan Amount	$35,180,000
Rate	6.98% Fixed
Closing Date	May 3, 2021

1. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,180,000. The loan shall bear interest at a fixed rate of 6.98% per annum, calculated on an Actual/360 basis. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

2. Maturity and Amortization. The loan matures 12 years from the Closing Date. Monthly payments shall be interest-only for the first 9 months and thereafter based on a 30-year amortization schedule. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

3. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM. Time is of the essence with respect to each and every provision of this instrument.

4. Collateral. The loan is secured by a first-lien mortgage on Lockwood Eastlake Mixed-Use Center, an assignment of leases and rents and a security interest in all personal property. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

5. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

6. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

7. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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8. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

9. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

10. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

11. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,180,000. The loan shall bear interest at a fixed rate of 6.98% per annum, calculated on an Actual/360 basis. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

12. Maturity and Amortization. The loan matures 9 years from the Closing Date. Monthly payments shall be interest-only for the first 44 months and thereafter based on a 30-year amortization schedule. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

13. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

14. Collateral. The loan is secured by a first-lien mortgage on Lockwood Eastlake Mixed-Use Center, an assignment of leases and rents and a security interest in all personal property. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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15. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

16. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

17. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

18. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

19. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

20. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

21. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,180,000. The loan shall bear interest at a fixed rate of 6.98% per annum, calculated on an Actual/360 basis. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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22. Maturity and Amortization. The loan matures 8 years from the Closing Date. Monthly payments shall be interest-only for the first 17 months and thereafter based on a 30-year amortization schedule. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

23. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

24. Collateral. The loan is secured by a first-lien mortgage on Lockwood Eastlake Mixed-Use Center, an assignment of leases and rents and a security interest in all personal property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

25. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

26. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

27. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

28. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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29. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

30. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

31. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,180,000. The loan shall bear interest at a fixed rate of 6.98% per annum, calculated on an Actual/360 basis. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

32. Maturity and Amortization. The loan matures 10 years from the Closing Date. Monthly payments shall be interest-only for the first 24 months and thereafter based on a 30-year amortization schedule. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

33. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

34. Collateral. The loan is secured by a first-lien mortgage on Lockwood Eastlake Mixed-Use Center, an assignment of leases and rents and a security interest in all personal property. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

35. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

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36. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

37. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

38. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

39. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM. Time is of the essence with respect to each and every provision of this instrument.

40. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

41. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,180,000. The loan shall bear interest at a fixed rate of 6.98% per annum, calculated on an Actual/360 basis. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

42. Maturity and Amortization. The loan matures 7 years from the Closing Date. Monthly payments shall be interest-only for the first 32 months and thereafter based on a 30-year amortization schedule. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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43. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

44. Collateral. The loan is secured by a first-lien mortgage on Lockwood Eastlake Mixed-Use Center, an assignment of leases and rents and a security interest in all personal property. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

45. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

46. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

47. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

48. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

49. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

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50. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

51. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,180,000. The loan shall bear interest at a fixed rate of 6.98% per annum, calculated on an Actual/360 basis. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

52. Maturity and Amortization. The loan matures 5 years from the Closing Date. Monthly payments shall be interest-only for the first 25 months and thereafter based on a 30-year amortization schedule. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

53. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

54. Collateral. The loan is secured by a first-lien mortgage on Lockwood Eastlake Mixed-Use Center, an assignment of leases and rents and a security interest in all personal property. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

55. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

56. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

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57. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

58. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

59. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

60. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

61. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,180,000. The loan shall bear interest at a fixed rate of 6.98% per annum, calculated on an Actual/360 basis. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

62. Maturity and Amortization. The loan matures 8 years from the Closing Date. Monthly payments shall be interest-only for the first 2 months and thereafter based on a 30-year amortization schedule. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

63. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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64. Collateral. The loan is secured by a first-lien mortgage on Lockwood Eastlake Mixed-Use Center, an assignment of leases and rents and a security interest in all personal property. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

65. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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67. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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72. Maturity and Amortization. The loan matures 9 years from the Closing Date. Monthly payments shall be interest-only for the first 17 months and thereafter based on a 30-year amortization schedule. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

73. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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75. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

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82. Maturity and Amortization. The loan matures 6 years from the Closing Date. Monthly payments shall be interest-only for the first 48 months and thereafter based on a 30-year amortization schedule. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

83. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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86. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

87. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

88. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

89. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

90. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

91. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,180,000. The loan shall bear interest at a fixed rate of 6.98% per annum, calculated on an Actual/360 basis. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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92. Maturity and Amortization. The loan matures 12 years from the Closing Date. Monthly payments shall be interest-only for the first 45 months and thereafter based on a 30-year amortization schedule. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

93. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

94. Collateral. The loan is secured by a first-lien mortgage on Lockwood Eastlake Mixed-Use Center, an assignment of leases and rents and a security interest in all personal property. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

95. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

96. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

97. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

98. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Lockwood Eastlake Mixed-Use Center Owner LLC

By: Tina Walker Title: Manager Date: 05/03/2021

_____

Fairway Realty

By: Maria Garcia Title: Managing Member Date: 05/03/2021

Exhibit A - Property

Lockwood Eastlake Mixed-Use Center, 6010 Centennial Drive, Albuquerque, NM 11357. Parcel containing approximately 3.74 acres, together with all improvements thereon.

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